

UPSC GS-II POLITY

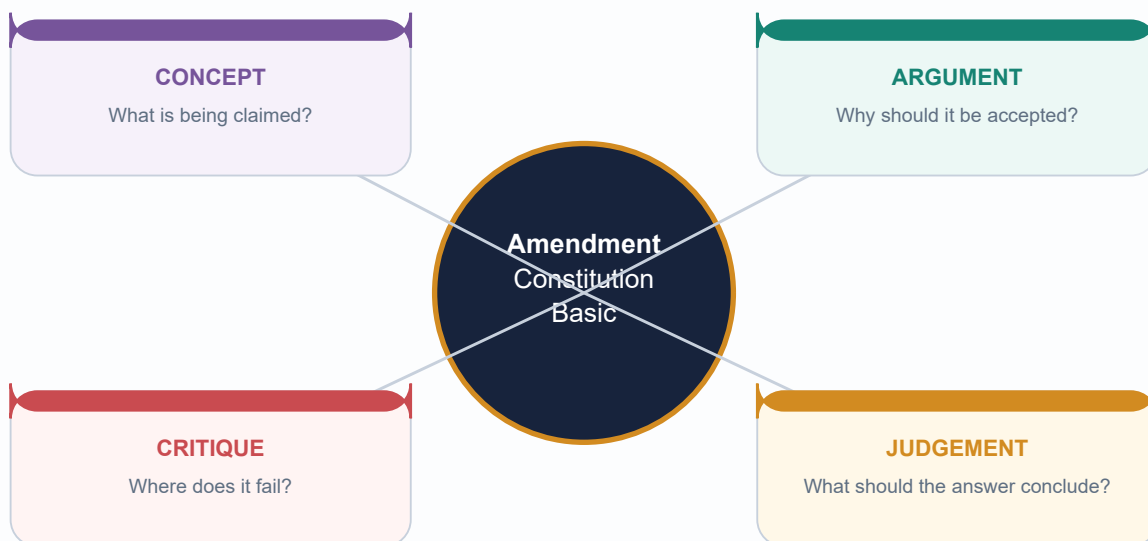
Amendment of the Constitution and the Basic Structure Doctrine

Integrated Basic + Advanced Course

13 deep-learning modules | Article 368 to the Basic Structure at Fifty

Visual case-law timelines, procedural maps, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base and the completed guided session



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

The Nature of the Amending Power Under Article 368

GS-II Polity -
Amendment
Nature

NEWS TRIGGER

Debates on whether Parliament is 'sovereign' in the British sense, or bound like the US Congress, return repeatedly to the deliberately hybrid design of Article 368.

INTRO & ORIGIN

Article 368, Part XX, gives Parliament the power to amend the Constitution by addition, variation or repeal. The Indian process is neither as flexible as Britain's unwritten constitution nor as rigid as the United States' - K.C. Wheare called it a design that 'strikes a good balance between flexibility and rigidity'.

Parliament exercises what is called 'constituent power' under Article 368, which is distinct from its ordinary legislative power - but even this constituent power cannot alter the Constitution's 'basic structure', a limitation established only in 1973 by Kesavananda Bharati.

TIMELINE

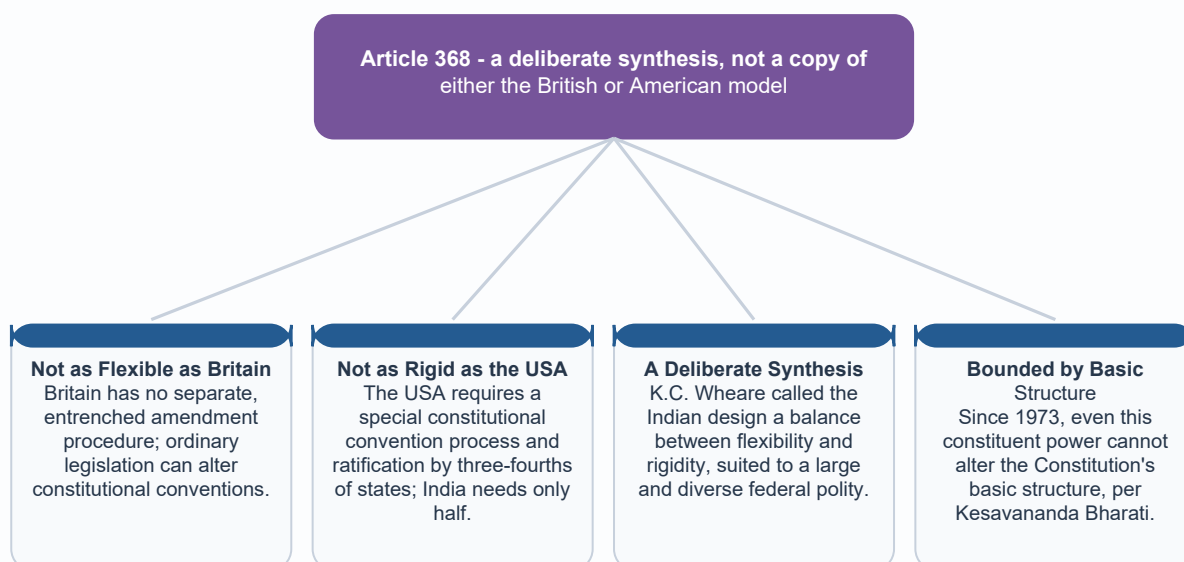
1950 — Constitution commences with Article 368 already providing the amendment mechanism.

1951 — 1st Amendment - the first use of Article 368 - inserts Article 31A/31B and the Ninth Schedule.

1971 — 24th Amendment amends Articles 13 and 368 themselves, confirming Parliament can amend Fundamental Rights.

1973 — Kesavananda Bharati adds the basic-structure limitation on the constituent power.

IS INDIA'S AMENDING POWER FLEXIBLE OR RIGID?



KEY DATA

Feature	Position
Article	368, Part XX
Power type	Constituent power of Parliament (distinct from ordinary legislative power)
Comparative design	Neither as flexible as Britain nor as rigid as the USA - a synthesis (K.C. Wheare)
Ultimate limit	Cannot alter the 'basic structure' (Kesavananda Bharati, 1973)

STATIC THEORY

- Article 368 permits amendment by three distinct methods - addition, variation or repeal - covering the full range of possible textual changes to the Constitution.
- The term 'constituent power' distinguishes Parliament's amending capacity from its day-to-day law-making capacity; the former modifies the Constitution itself, the latter operates within it.
- Even though Parliament possesses this special constituent power, it is not unlimited - the basic-structure doctrine confines even Article 368 itself, a limitation the text of Article 368 does not explicitly state.
- The Indian design deliberately avoided both extremes: an unwritten, easily-changed constitution (Britain) and an unusually rigid, convention-based one (the USA).

MEMORY HOOK

NOT AS EASY AS BRITAIN, NOT AS HARD AS AMERICA - A DELIBERATE MIDDLE PATH, LATER FENCED BY THE BASIC STRUCTURE.

MUST-KNOW FACTS

1. Article 368, Part XX, empowers Parliament to amend the Constitution by addition, variation or repeal.
2. The power exercised under Article 368 is called 'constituent power', distinct from ordinary legislative power.
3. K.C. Wheare described the Indian amendment procedure as striking a balance between flexibility and rigidity.

UPSC TRAPS

WRONG: India's amendment procedure is modelled directly on the United States.

CORRECT: It is a deliberate synthesis, avoiding both the British and American extremes.

MAINS ANGLE

Frame any question on the nature of Article 368 around the 'synthesis' idea - this avoids the common error of describing India's Constitution as simply 'flexible' or simply 'rigid'.

STUDY LINK

Polity -> Historical Background ->
Constitution-Making | Polity -> Federal System
-> Distribution of Powers

HIGH

The Eight-Step Procedure Under Article 368

GS-II Polity -
Amendment
Procedure

NEWS TRIGGER

Whenever Parliament debates a constitutional amendment bill, the fixed eight-step sequence under Article 368 - not ordinary legislative procedure - governs its passage.

INTRO & ORIGIN

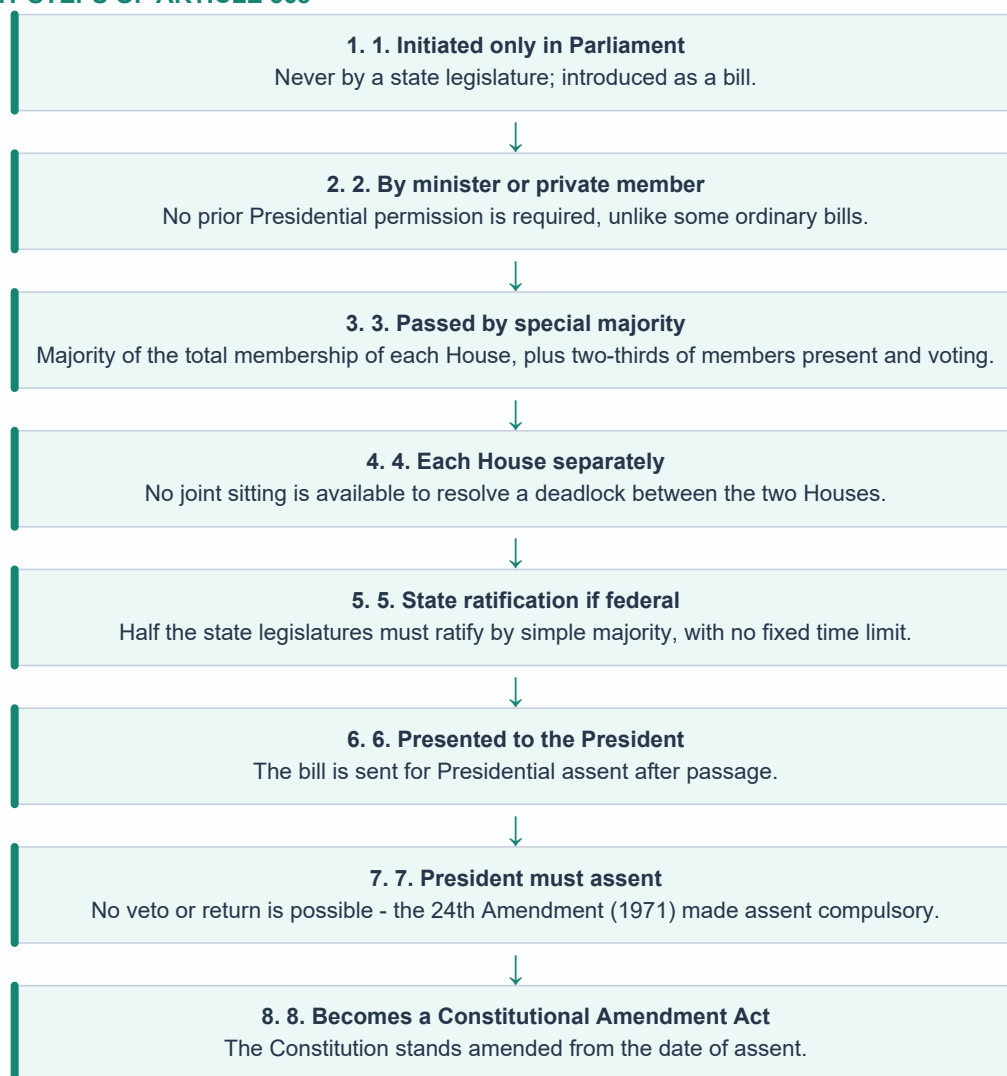
An amendment bill can be introduced in either House, by a minister or a private member, without prior Presidential permission. It must pass each House separately by special majority, and federal-provision bills additionally require ratification by half the states, before going to the President for mandatory assent.

Each step in this sequence has a specific trap value - especially the absence of joint sitting and the mandatory nature of Presidential assent since the 24th Amendment, 1971.

KEY DATA

Step	Rule	Common trap
Initiation	Only Parliament, never a state legislature	States cannot originate an amendment bill
Deadlock	No joint sitting provision	Unlike ordinary bills, deadlock cannot be resolved by joint sitting
State ratification	Simple majority, half the states, no time limit	Not special majority; not three-fourths as in the USA
Presidential assent	Mandatory since the 24th Amendment, 1971	President cannot withhold or return the bill

THE EIGHT STEPS OF ARTICLE 368



STATIC THEORY

- The special majority requirement - total membership plus two-thirds present and voting - applies to the passage of the amendment bill in each House separately.
- Federal-provision amendments require ratification by half the state legislatures, but by simple majority only, and with no fixed time limit for that ratification to occur.
- Before the 24th Amendment, 1971, the President's position on assent was ambiguous; the Amendment settled the question by making assent to a constitutional amendment bill compulsory.
- Unlike ordinary legislation, there is no joint-sitting mechanism to break a deadlock between the Lok Sabha and Rajya Sabha over an amendment bill.

MEMORY HOOK

NO STATE INITIATION, NO JOINT SITTING, SIMPLE-MAJORITY STATE RATIFICATION, MANDATORY PRESIDENTIAL ASSENT.

MUST-KNOW FACTS

1. An amendment bill can be introduced by a minister or a private member without prior Presidential permission.
2. Special majority means majority of total membership plus two-thirds of members present and voting, in each House separately.
3. The 24th Amendment, 1971, made Presidential assent to constitutional amendment bills compulsory.

UPSC TRAPS

WRONG: A deadlock between the two Houses on an amendment bill is resolved by joint sitting.

CORRECT: No joint-sitting provision exists for constitutional amendment bills.

WRONG: States ratify a federal amendment by special majority, similar to Parliament.

CORRECT: States ratify by simple majority, and only half the states need to ratify - unlike the USA's three-fourths requirement.

MAINS ANGLE

Use the eight-step sequence to answer 'procedural limitations on the amending power' questions - the absence of joint sitting and the simple-majority state ratification are the two most examiner-favoured procedural weaknesses.

STUDY LINK

Polity -> Parliament -> Joint Sitting (Art 108) |
Polity -> President -> Legislative Powers

HIGH

Three Types of Constitutional Amendment by Majority

GS-II Polity -
Amendment
Types

NEWS TRIGGER

GST Council reforms and debates on Centre-state fiscal power regularly hinge on whether a proposed change needs simple majority, special majority, or special majority plus state ratification.

INTRO & ORIGIN

Not every constitutional change requires the full Article 368 procedure. Provisions fall into three categories based on the majority required: simple majority (technically outside Article 368), special majority, and special majority combined with ratification by half the states.

This three-way classification is the master framework for nearly every Prelims question asking 'which majority is needed to amend X provision'.

THREE ROUTES TO CONSTITUTIONAL CHANGE

Constitutional Amendment

Simple Majority (outside Art 368) New states, citizenship, legislative councils, 5th/6th Schedule, official language.	Special Majority (within Art 368) Fundamental Rights, Directive Principles, and most other provisions not covered by the other two routes.
Special Majority + State Ratification President's election, SC/HC, Centre-state powers, GST Council, 7th Schedule, Article 368 itself.	

KEY DATA

Type	Majority required	Example provisions
Simple majority	Members present and voting	New states, citizenship, legislative councils, 5th/6th Schedule
Special majority	Total membership + 2/3 present and voting	Fundamental Rights, Directive Principles, most provisions
Special majority + state ratification	Above + simple majority in half the states	President's election, SC/HC, Centre-state powers, GST Council, 7th Schedule

STATIC THEORY

- Changes falling in the simple-majority category are, strictly speaking, not deemed amendments under Article 368 at all, even though they alter constitutional text.
- 'Total membership' for the special-majority calculation means the full sanctioned strength of the House, regardless of vacancies or absentees on the day of voting.
- The third category exists because these provisions touch the federal structure directly, so both the Union Parliament and a substantial number of states must consent.
- The GST Council provision (Article 279-A) was added by the 101st Amendment, 2016, and falls in the federal, state-ratification category because it restructures Centre-state fiscal power.

MEMORY HOOK

SIMPLE (outside 368) -> SPECIAL (within 368) -> SPECIAL + HALF THE STATES (federal core).

MUST-KNOW FACTS

1. Simple-majority changes are technically outside Article 368, even though they amend constitutional text.
2. Special majority means total membership plus two-thirds of members present and voting.
3. The GST Council (Article 279-A), added by the 101st Amendment, 2016, requires special majority plus state ratification.

UPSC TRAPS

WRONG: All three types of constitutional change are 'amendments' under Article 368.

CORRECT: Simple-majority changes are outside Article 368's formal ambit, even though the text changes.

MAINS ANGLE

Use this three-way classification to demonstrate that India's amendment process calibrates rigidity to constitutional importance - routine matters need less consensus, federal-core matters need more.

STUDY LINK

Polity -> GST Council -> Article 279-A | Polity -> Union Territories -> Simple Majority Changes

HIGH

The Simple-Majority List - Outside Article 368

GS-II Polity -
Simple Majority
Provisions

NEWS TRIGGER

Creation of new states or Union Territories and periodic changes to Scheduled Areas are recurring governance events that use this simple-majority route rather than the full amendment procedure.

INTRO & ORIGIN

A substantial list of provisions can be altered by Parliament through ordinary legislation - simple majority of members present and voting - without invoking the special Article 368 machinery at all.

This list is worth memorising as a single block because Prelims questions often present one item from it alongside special-majority items and ask which one does NOT need a special majority.

KEY DATA

Category	Examples
Territorial changes	Admission/formation of new states; alteration of areas, boundaries or names of existing states
Legislative councils	Abolition or creation of Legislative Councils in states
Schedules	2nd Schedule (emoluments of President, Governors, Speaker, judges); 5th Schedule (scheduled areas); 6th Schedule (tribal areas)
Parliamentary matters	Quorum; salaries and allowances of members; rules of procedure; use of English in Parliament
Judiciary and citizenship	Number of Supreme Court judges; extension of Supreme Court jurisdiction; citizenship acquisition and termination
Elections and language	Elections to Parliament and state legislatures; delimitation; official language; Union Territories

STATIC THEORY

- Although these changes alter constitutional text (for example, the 2nd Schedule or the 5th and 6th Schedules), they are not treated as 'amendments' under Article 368's formal definition.
- This route explains why Parliament can create a new state or a new Union Territory through an ordinary law rather than a constitutional amendment bill.
- Citizenship acquisition and termination, and the number of puisne judges in the Supreme Court, are both altered by ordinary parliamentary legislation, not by Article 368 amendment.
- The rationale for this lighter procedure is administrative flexibility - these matters may need frequent adjustment and would be impractical to route through special majority and state ratification each time.

MEMORY HOOK

NEW STATES, CITIZENSHIP, COUNCILS, 5th/6th SCHEDULE, OFFICIAL LANGUAGE - ALL BY ORDINARY LAW, NOT ARTICLE 368.

MUST-KNOW FACTS

1. Formation of new states and alteration of state boundaries require only a simple majority, not a constitutional amendment.
2. Abolition or creation of a state Legislative Council needs only a simple majority resolution followed by parliamentary law.
3. Citizenship acquisition and termination are governed by ordinary law under the simple-majority route.

UPSC TRAPS

WRONG: Creating a new state requires a special-majority constitutional amendment.

CORRECT: It requires only simple majority, since it is treated as outside Article 368.

MAINS ANGLE

Use this list to argue that India's amendment design consciously separates administrative flexibility (simple majority) from constitutional entrenchment (special majority and state ratification).

STUDY LINK

Polity -> Union Territories -> State Formation |
Polity -> Scheduled and Tribal Areas -> 5th and 6th Schedule

HIGH

The Federal List - Special Majority Plus State Ratification

GS-II Polity -
Federal
Amendment List

NEWS TRIGGER

The 101st Amendment's addition of the GST Council to this federal list is the most recent and most tested illustration of why some provisions require state consent to change.

INTRO & ORIGIN

Eight categories of provisions touch the Union-state federal balance so directly that Parliament alone cannot alter them - half the state legislatures must also ratify the change by simple majority, in addition to Parliament's own special majority.

This is the smallest but most conceptually important list, because it identifies exactly which parts of the Constitution are treated as jointly 'owned' by the Union and the states.

KEY DATA

#	Federal provision requiring state ratification
1	Election of the President and the manner of election
2	Extent of the executive power of the Union and the states
3	Supreme Court and High Courts
4	Distribution of legislative powers between Centre and states
5	GST Council (Article 279-A, added by the 101st Amendment, 2016)
6	Any of the lists in the Seventh Schedule
7	Representation of states in Parliament
8	Article 368 itself (the amending power provision)

STATIC THEORY

- Article 368 itself is on this list - meaning any change to the amendment procedure requires state ratification, preventing Parliament from unilaterally loosening its own amending power.
- The GST Council's addition to this list via the 101st Amendment, 2016, confirms that new federal institutions can be added to Article 368's protected category as the federal structure evolves.
- State ratification for this entire list is by simple majority of the state legislature, with no fixed deadline - a state that has not yet ratified may still do so later, and there is no established procedure for a state to withdraw an earlier ratification.
- This federal list is the constitutional mechanism protecting India's quasi-federal structure from unilateral alteration by the Union Parliament alone.

MEMORY HOOK

PRESIDENT'S ELECTION, EXECUTIVE POWER, SC/HC, LEGISLATIVE LISTS, GST COUNCIL, SEVENTH SCHEDULE, STATE REPRESENTATION, ARTICLE 368 ITSELF.

MUST-KNOW FACTS

1. Amending Article 368 itself requires special majority plus ratification by half the states.
2. The GST Council provision (Article 279-A) was added to this federal list by the 101st Amendment, 2016.
3. State ratification requires only simple majority in the state legislature, with no fixed time limit.

UPSC TRAPS

WRONG: Changing the distribution of legislative powers needs only Parliament's special majority.

CORRECT: It also requires ratification by half the states, since it is a core federal provision.

MAINS ANGLE

Use the presence of Article 368 itself on this list to argue that India's federal design is self-protecting - Parliament cannot expand its own amending power without state consent.

STUDY LINK

Polity -> GST Council -> 101st Amendment |
Polity -> Centre-State Relations -> Seventh Schedule

HIGH

Criticism of the Amendment Procedure

GS-II Polity -
Amendment
Criticism

NEWS TRIGGER

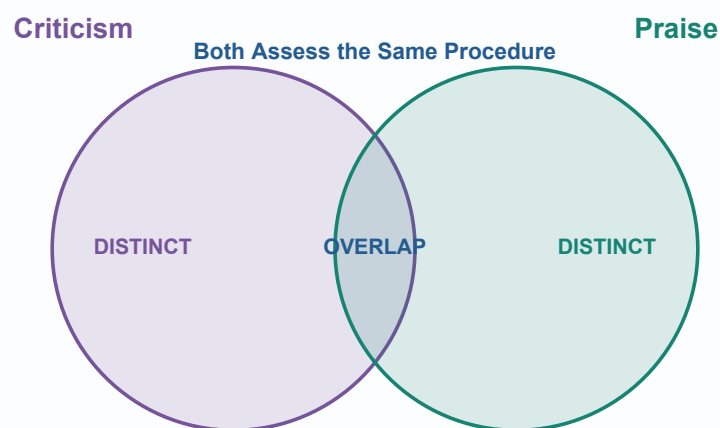
Comparisons with the United States' constitutional convention model periodically revive the argument that India's amendment process gives states too little say and Parliament too much control.

INTRO & ORIGIN

Seven distinct criticisms have been made of India's amendment procedure, ranging from the absence of a special constituent body to the sketchy drafting of Article 368 itself - yet framers and scholars alike also defended the design's practical wisdom.

Balancing named criticism against named praise (Nehru, Ambedkar, Wheare, Austin) is exactly the kind of paired citation UPSC Mains rewards.

CRITICISM VS PRAISE OF THE AMENDMENT PROCEDURE

**Criticism**

- No special constituent body, unlike the US convention process
- States cannot initiate amendments (except a council's resolution)
- Only half the states must consent, versus three-fourths in the USA
- No fixed time-frame for state ratification; no rule on withdrawal
- No joint sitting for deadlock
- Resembles ordinary legislation except for special majority
- Provisions are too sketchy, leaving wide scope for judicial interpretation

Both Assess the Same Procedure

- Both accept Parliament holds the primary amending role
- Both engage with how rigid or flexible the process should be

Praise

- Nehru: flexibility suited to a 'living, vital, organic people'
- Ambedkar: called it a 'facile procedure'
- K.C. Wheare: praised its 'variety... wise but rarely found'
- Granville Austin: 'ably conceived... merely diverse'

The same procedural design that critics call sketchy and state-unfriendly is praised by framers as flexible and well-conceived for a diverse, evolving nation.

STATIC THEORY

- Unlike the United States, India has no separate constitutional convention mechanism - amendments are passed by the same Parliament that makes ordinary law, differing only in the majority required.
- States cannot initiate a constitutional amendment on their own, with the narrow exception of passing a resolution for creating or abolishing a state Legislative Council.
- The absence of a fixed time-frame for state ratification, and the silence on whether a state can withdraw an earlier ratification, are procedural gaps that have never required judicial resolution but remain theoretically open.
- Despite these criticisms, Nehru, Ambedkar, Wheare and Austin all separately praised the procedure's suitability for a large, diverse and evolving political community.

MEMORY HOOK

CRITICS SAY 'TOO PARLIAMENT-CENTRIC AND SKETCHY'; FRAMERS SAY 'FLEXIBLE AND WISE FOR A LIVING NATION'.

MUST-KNOW FACTS

1. States cannot initiate constitutional amendments, except for a resolution on creating or abolishing a Legislative Council.
2. India requires ratification by only half the states for federal provisions, compared to three-fourths in the USA.
3. Ambedkar described the amendment procedure as a 'facile procedure'; Nehru linked it to a 'living, vital, organic people'.

UPSC TRAPS

WRONG: States can freely initiate constitutional amendment bills.

CORRECT: Only Parliament can initiate amendment bills; states cannot, except for the narrow Legislative Council resolution.

MAINS ANGLE

Pair one criticism (sketchy drafting, wide judicial scope) with one defence (Wheare's 'variety... wise but rarely found') to show balanced evaluation rather than one-sided critique.

STUDY LINK

Polity -> Federal System -> Centre-State Relations | Polity -> Constituent Assembly -> Framers' Debates

HIGH

Basic Structure Case-Law Spine I: Shankari Prasad to the 24th Amendment

GS-II Polity -
Case Law I

NEWS TRIGGER

Every question on Parliament's power over Fundamental Rights before 1973 traces to this opening sequence of reversal and counter-reversal between the judiciary and Parliament.

INTRO & ORIGIN

The earliest phase of the basic-structure story runs from Shankari Prasad's affirmation of Parliament's amending power, through Golak Nath's reversal declaring Fundamental Rights unamendable, to the 24th Amendment's restoration of that power just before Kesavananda Bharati.

This phase establishes the essential tension the basic-structure doctrine would later resolve: can Parliament's constituent power under Article 368 touch Part III at all?

BASIC STRUCTURE SPINE, PHASE I (1951-1971)

STATIC THEORY

- Shankari Prasad (1951) arose from a challenge to the 1st Amendment concerning property rights, and held that the word 'law' in Article 13 refers only to ordinary legislation, not constitutional amendments - so Parliament could amend Fundamental Rights.
- Golak Nath (1967), arising from a challenge to the 17th Amendment and the Ninth Schedule, reversed this position, holding Fundamental Rights to be 'transcendental and immutable' and that a constitutional amendment is itself 'law' under Article 13 - placing FR beyond Parliament's amending reach.
- Parliament responded with the 24th Amendment, 1971, which amended both Article 13 (declaring that nothing in that article applies to an amendment under Article 368) and Article 368 (making explicit that Parliament can add, vary or repeal any provision, including Part III).
- The 24th Amendment thus directly overturned Golak Nath's reasoning and set the stage for the challenge that would produce Kesavananda Bharati just two years later.

MEMORY HOOK

SHANKARI PRASAD = FR AMENDABLE | GOLAK NATH = FR FROZEN | 24th AMENDMENT = FR UNFROZEN AGAIN.

MUST-KNOW FACTS

1. Shankari Prasad (1951) held that 'law' in Article 13 does not include a constitutional amendment.
2. Golak Nath (1967) reversed this, holding Fundamental Rights 'transcendental and immutable' and unamendable.
3. The 24th Amendment (1971) amended both Article 13 and Article 368 to restore Parliament's power to amend Fundamental Rights.

UPSC TRAPS

WRONG: The basic-structure doctrine originated in Golak Nath.

CORRECT: Golak Nath only made Fundamental Rights unamendable; the basic-structure doctrine itself came only in Kesavananda Bharati, 1973.

MAINS ANGLE

Use this phase to show that the basic-structure doctrine did not emerge in a vacuum - it resolved a genuine oscillation between total parliamentary supremacy and total FR rigidity.

STUDY LINK

Polity -> Directive Principles -> FR-DPSP
Case Law | Polity -> Fundamental Rights -> Article 13

HIGH

Basic Structure Case-Law Spine II: Kesavananda Bharati to Waman Rao

GS-II Polity -
Case Law II

NEWS TRIGGER

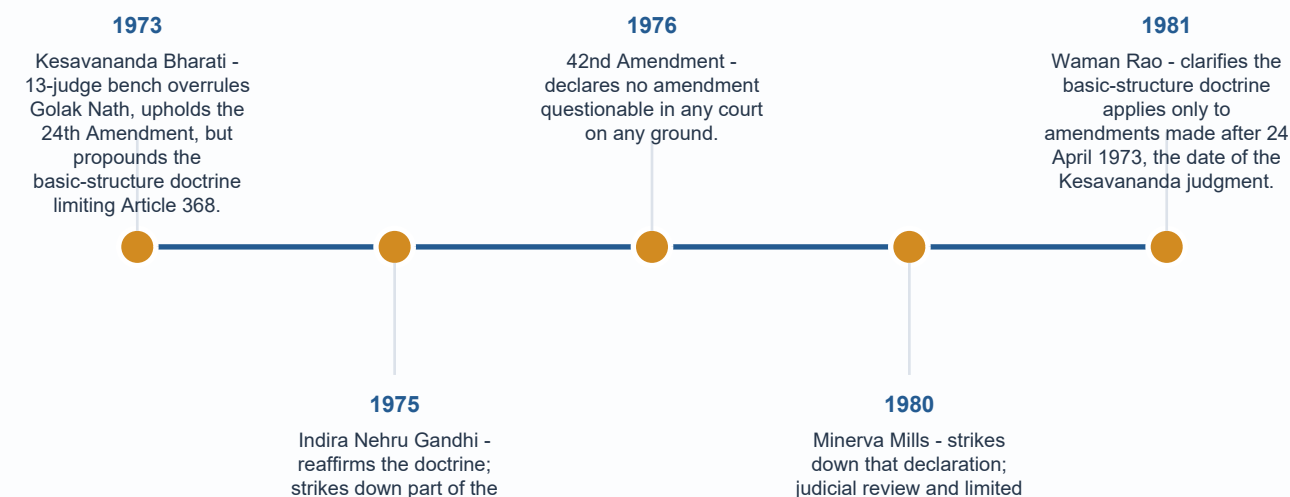
The 2023-24 public debate over whether the basic-structure doctrine dilutes parliamentary sovereignty makes this exact case sequence - Kesavananda through Minerva Mills - directly relevant to current constitutional discourse.

INTRO & ORIGIN

Kesavananda Bharati's basic-structure doctrine was tested almost immediately by the Emergency-era Indira Nehru Gandhi case and the 42nd Amendment's sweeping claims, before Minerva Mills restored judicial review as a basic feature and Waman Rao fixed the doctrine's date of application.

This second phase shows the doctrine being defended against its most direct challenge - a constitutional amendment declaring itself immune from all judicial review.

BASIC STRUCTURE SPINE, PHASE II (1973-1981)



STATIC THEORY

- Kesavananda Bharati (1973), decided by the largest bench ever assembled - 13 judges - overruled Golak Nath's blanket unamendability of Fundamental Rights, but simultaneously held that Parliament's constituent power under Article 368 cannot alter the Constitution's 'basic structure'.
- Indira Nehru Gandhi v. Raj Narain (1975) applied the doctrine to strike down a part of the 39th Amendment that had attempted to remove election disputes involving the Prime Minister and the Speaker from judicial scrutiny.
- The 42nd Amendment (1976) went further still, declaring that no constitutional amendment could be questioned in any court on any ground - an assertion of unlimited constituent power.
- Minerva Mills (1980) struck down this declaration, holding that judicial review and a limited amending power are themselves basic features - 'a limited amending power... cannot be converted into an unlimited one'.
- Waman Rao (1981) settled a practical question left open by Kesavananda: the basic-structure doctrine applies prospectively, to amendments made only after 24 April 1973, the date of the Kesavananda judgment.

MEMORY HOOK

KESAVANANDA BUILDS THE DOCTRINE (1973) -> INDIRA GANDHI APPLIES IT (1975) -> 42nd AMENDMENT DEFIES IT (1976) -> MINERVA MILLS DEFENDS IT (1980) -> WAMAN RAO DATES IT (1981, from 24 April 1973).

MUST-KNOW FACTS

1. Kesavananda Bharati (1973) was decided by a 13-judge bench, the largest in Indian constitutional history.
2. Minerva Mills (1980) struck down the 42nd Amendment's declaration that no amendment is questionable in any court.
3. Waman Rao (1981) fixed the basic-structure doctrine's applicability to amendments made after 24 April 1973.

UPSC TRAPS

WRONG: The basic-structure doctrine applies to every constitutional amendment since 1950.

CORRECT: Waman Rao (1981) limited its application to amendments made after 24 April 1973, the date of Kesavananda Bharati.

WRONG: Kesavananda Bharati struck down the 24th Amendment.

CORRECT: It upheld the 24th Amendment's core power to amend Fundamental Rights, while limiting that power through the basic-structure doctrine.

MAINS ANGLE

Use the Kesavananda-to-Minerva Mills sequence to argue that the basic-structure doctrine was forged specifically to prevent Parliament from placing itself beyond judicial review, not to generally restrict ordinary reform.

STUDY LINK

Polity -> Judiciary -> Judicial Review | Polity
-> Directive Principles -> Minerva Mills

HIGH

Kesavananda Bharati Deep Dive - The Thirteen-Judge Verdict

GS-II Polity -
Kesavananda
Deep Dive

NEWS TRIGGER

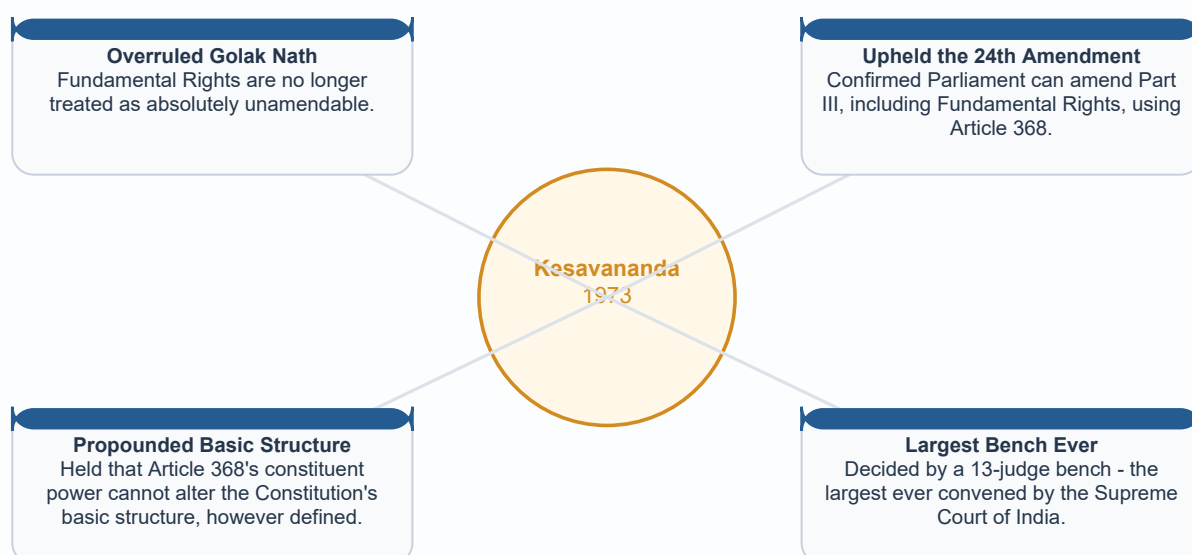
As the single most cited Indian constitutional judgment, Kesavananda Bharati's four-part holding is tested far more often than its case name and year alone.

INTRO & ORIGIN

Kesavananda Bharati (1973) is best remembered not as a single ruling but as four connected holdings: it overruled Golak Nath, upheld the 24th Amendment, invented the basic-structure doctrine, and did so through the largest bench the Supreme Court has ever assembled.

Understanding these four holdings separately prevents the common error of treating the judgment as simply 'Parliament cannot amend the Constitution' - it can, just not its basic structure.

FOUR HOLDINGS OF KESAVANANDA BHARATI, 1973



STATIC THEORY

- The case arose from a challenge by Kesavananda Bharati, head of a religious mutt in Kerala, against land reform legislation and the 24th, 25th and 29th Amendments.
- The 'basic structure' itself was left undefined by an exhaustive list in the judgment - subsequent cases have identified specific features (judicial review, federalism, secularism) as belonging to it on a case-by-case basis.
- By simultaneously overruling Golak Nath and inventing the basic-structure limit, the Court charted a middle path: neither absolute parliamentary supremacy over the Constitution, nor an absolutely frozen Part III.
- The doctrine has since become the benchmark against which every major constitutional amendment is implicitly tested, even though no single provision of the Constitution names it explicitly.

MEMORY HOOK

KESAVANANDA = FOUR THINGS AT ONCE: GOLAK NATH GONE, 24th AMENDMENT UPHELD, BASIC STRUCTURE BORN, THIRTEEN JUDGES DECIDED.

MUST-KNOW FACTS

1. Kesavananda Bharati (1973) was decided by a 13-judge bench, the largest ever in Indian constitutional history.
2. The judgment did not provide an exhaustive, closed list of what constitutes the basic structure.
3. It simultaneously overruled Golak Nath (1967) and upheld the 24th Amendment (1971).

UPSC TRAPS

WRONG: Kesavananda Bharati provided a complete, closed list of basic-structure features.

CORRECT: The judgment left the concept open-ended; courts have identified specific features case by case since 1973.

MAINS ANGLE

Use the 'open-ended by design' character of the basic structure to argue that the doctrine has evolved through subsequent cases (Indira Gandhi 1975, S.R. Bommai 1994) rather than being fixed in 1973.

STUDY LINK

Polity -> Supreme Court -> Constitution Benches | Polity -> Federal System -> S.R. Bommai

HIGH

Elements of the Basic Structure and the I.R. Coelho Extension

GS-II Polity -
Basic Structure
Elements

NEWS TRIGGER

Whenever a new law is placed in the Ninth Schedule to shield it from judicial review, the question of I.R. Coelho's limits on such immunity becomes directly relevant.

INTRO & ORIGIN

Courts have identified an illustrative, open-ended list of roughly twenty elements as part of the basic structure, spanning constitutional supremacy, federalism, secularism and judicial review; I.R. Coelho (2007) extended the doctrine's reach to Ninth Schedule laws enacted after Kesavananda.

This list is 'illustrative' rather than exhaustive by judicial design - the Supreme Court has deliberately avoided freezing the concept to a fixed set of features.

KEY DATA

Category	Illustrative basic-structure elements
Constitutional character	Supremacy of the Constitution; sovereign-democratic-republican nature; secular character
Governance structure	Separation of powers; federal character; parliamentary system; welfare state (socio-economic justice)
Rights and review	Judicial review; rule of law; freedom and dignity of the individual; harmony/balance between FR and DPSP
Institutional powers	Powers of the Supreme Court (Articles 32, 136, 141, 142); powers of the High Courts (Articles 226, 227)
Democratic process	Free and fair elections; independence of judiciary; limited amending power; effective access to justice

STATIC THEORY

- Judicial review, free and fair elections and the rule of law were affirmed as basic-structure elements specifically in *Indira Nehru Gandhi v. Raj Narain* (1975).
- Federalism was affirmed as a basic-structure element in *S.R. Bommai* (1994), extending the doctrine into Centre-state relations.
- I.R. Coelho (2007) held that laws inserted into the Ninth Schedule after 24 April 1973 - the date fixed by *Waman Rao* - are not automatically immune from judicial review; they can still be tested against the basic structure.
- This means the Ninth Schedule's protective shield, historically used to insulate land reform and other laws from Fundamental Rights challenges, is no longer absolute for post-1973 insertions.

MEMORY HOOK

TWENTY-ODD ELEMENTS, OPEN-ENDED BY DESIGN; I.R. COELHO (2007) SAYS 'NINTH SCHEDULE IS NOT AN AUTOMATIC SHIELD AFTER 1973'.

MUST-KNOW FACTS

1. The basic-structure list is illustrative and open-ended; courts have added elements such as federalism (*S.R. Bommai*, 1994) over time.
2. I.R. Coelho (2007) held that post-1973 Ninth Schedule laws remain subject to basic-structure review.
3. Judicial review, free and fair elections and rule of law were specifically affirmed as basic features in *Indira Nehru Gandhi* (1975).

UPSC TRAPS

WRONG: All Ninth Schedule laws are fully immune from judicial review.

CORRECT: I.R. Coelho (2007) held that laws added to the Ninth Schedule after 24 April 1973 remain subject to basic-structure review.

I.R. COELHO (2007) - EXTENDING BASIC STRUCTURE REVIEW TO THE NINTH SCHEDULE

Prior position	I.R. Coelho (2007) holding	Effect
Ninth Schedule laws were treated as broadly immune from Fundamental Rights challenge under Article 31B	Post-1973 Ninth Schedule insertions are subject to basic-structure review	Immunity is no longer automatic for laws added after 24 April 1973
Basic structure applied mainly to amendments directly altering rights provisions	It now also applies indirectly, through Ninth Schedule placement, to ordinary laws	Widens the doctrine's practical reach beyond direct FR amendments

MAINS ANGLE

Use I.R. Coelho to show the basic-structure doctrine's reach extends beyond direct constitutional amendments to ordinary laws that seek indirect immunity through the Ninth Schedule.

STUDY LINK

Polity -> Federal System -> *S.R. Bommai* |
Polity -> Supreme Court -> Article 32

HIGH

Current Affairs Anchor - Basic Structure at Fifty (2023-24)

GS-II Polity -
Basic Structure
Debate

NEWS TRIGGER

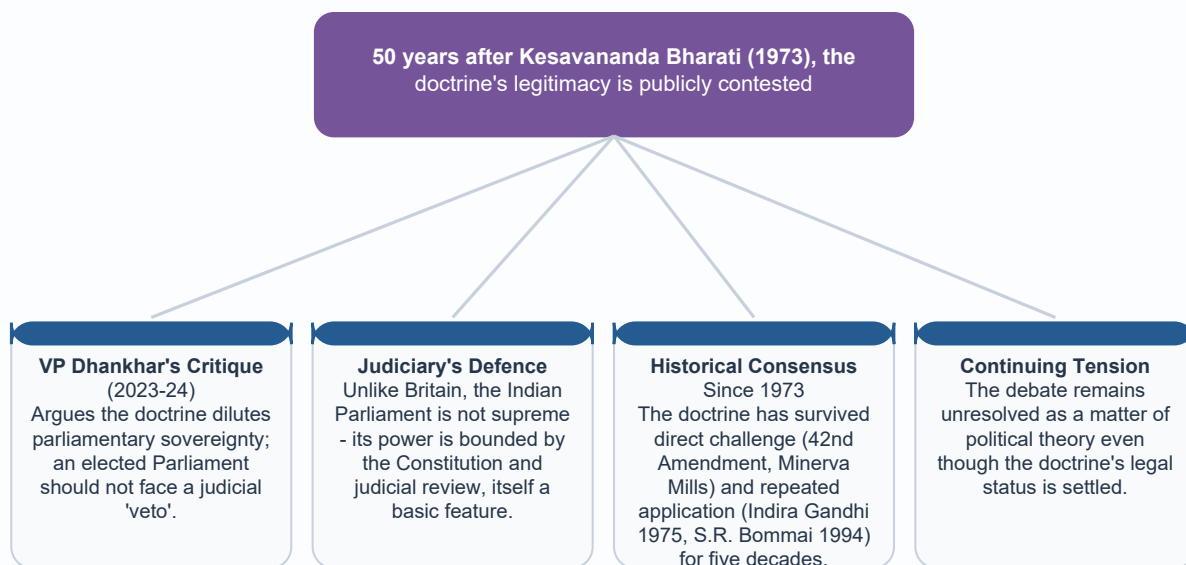
The fiftieth anniversary of *Kesavananda Bharati* in 2023 reopened a public debate on whether the basic-structure doctrine is a legitimate constitutional safeguard or an unelected judicial check on Parliament.

INTRO & ORIGIN

2023 marked fifty years since Kesavananda Bharati was decided on 24 April 1973. Vice-President Jagdeep Dhankhar publicly questioned the doctrine during 2023-24, arguing it dilutes parliamentary sovereignty, while the judiciary and legal community reaffirmed that the Indian Parliament, unlike Britain's, is not supreme and remains bound by judicial review.

This 'Legislature versus Judiciary' tension is a live and recurring theme, directly connecting the historical Kesavananda doctrine to present-day constitutional debate - ideal Mains and Essay material.

IS THE BASIC STRUCTURE DOCTRINE DEMOCRATIC?



STATIC THEORY

- Vice-President Jagdeep Dhankhar's 2023-24 remarks framed the basic-structure doctrine as a judicial constraint on the will of the elected legislature, questioning whether unelected judges should hold this power.
- The judiciary and much of the legal community responded by reaffirming that India's constitutional design never intended an unqualified, British-style parliamentary sovereignty - judicial review is itself part of the basic structure, as Minerva Mills held in 1980.
- This is a rare instance where a foundational 1973 legal doctrine remains the subject of live political contestation five decades later, rather than being settled purely as legal history.
- The debate illustrates the enduring tension between parliamentary sovereignty and constitutional supremacy that runs through the entire amendment and basic-structure chapter.

MEMORY HOOK

2023 = FIFTY YEARS OF KESAVANANDA; DHANKHAR QUESTIONS IT, THE JUDICIARY DEFENDS IT AS 'PARLIAMENT IS NOT SUPREME IN INDIA'.

MUST-KNOW FACTS

1. 2023 marked the fiftieth anniversary of Kesavananda Bharati, decided on 24 April 1973.
2. Vice-President Jagdeep Dhankhar publicly questioned the basic-structure doctrine during 2023-24 as diluting parliamentary sovereignty.
3. The judiciary's response affirmed that the Indian Parliament, unlike Britain's, is not supreme and remains bound by judicial review.

UPSC TRAPS

WRONG: The 2023-24 debate changed the legal status of the basic-structure doctrine.

CORRECT: The doctrine's legal status remains unchanged; the debate is a political and theoretical contestation of its legitimacy.

MAINS ANGLE

Use the Dhankhar debate to frame an essay-style discussion: *is the basic-structure doctrine the guardian of constitutionalism, or does it represent judicial overreach into the domain of an elected Parliament?*

STUDY LINK

Essay -> Judicial Review and Parliamentary Sovereignty | Polity -> Vice-President -> Constitutional Role

HIGH

Mains Framework: Procedural and Substantive Limits on the Amending Power

GS-II Mains
Polity - Answer
Writing

NEWS TRIGGER

A verified 2025 GS-II Mains question directly asked candidates to examine the procedural and substantive limitations on Parliament's amending power - making this exact framework high-priority.

INTRO & ORIGIN

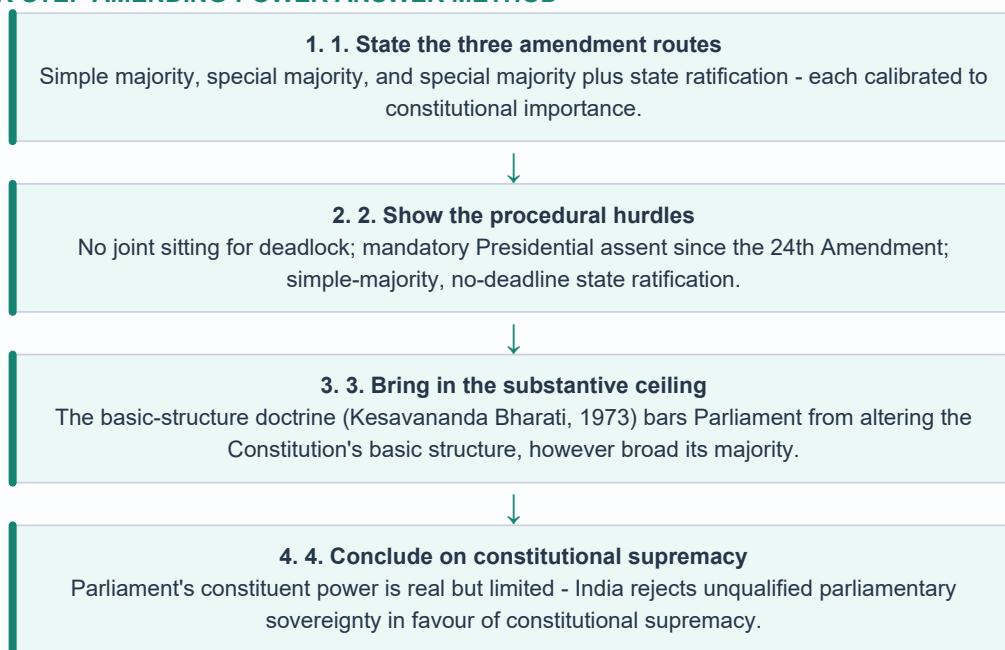
A complete answer on the limits of the amending power must cover both procedural hurdles (the three majority routes, no joint sitting, mandatory Presidential assent) and the substantive ceiling imposed by the basic-structure doctrine, concluding with the idea of constitutional supremacy over unlimited parliamentary sovereignty.

This four-step method mirrors the route suggested for the verified 2025 GS-II Q12 (15 marks, 250 words) Mains question on this exact theme.

KEY DATA

Answer section	What to write	Illustrations
Introduction	Article 368 as a deliberate synthesis, not a copy of Britain or the USA	K.C. Wheare's 'balance between flexibility and rigidity'
Procedural limits	Three majority routes; no joint sitting; mandatory assent	24th Amendment (1971) made assent compulsory
Substantive limits	Basic-structure doctrine bars altering core constitutional features	Kesavananda Bharati (1973); Minerva Mills (1980)
Conclusion	Constitutional supremacy, not unlimited parliamentary sovereignty	Dhankhar 2023-24 debate as a live illustration of the tension

THE FOUR-STEP AMENDING-POWER ANSWER METHOD



STATIC THEORY

- The 2025 GS-II Q12 Mains question specifically asked candidates to examine both the procedural and substantive limitations on Parliament's amending power - confirming this exact framework as current exam practice.
- Examiners reward answers that treat procedural hurdles (majority thresholds, no joint sitting, mandatory assent) as distinct from the substantive ceiling (basic structure) rather than conflating the two.
- The strongest conclusion links the doctrine back to constitutional supremacy: Parliament possesses extensive constituent power, but that power itself derives from and remains subject to the Constitution.

MEMORY HOOK

THREE ROUTES -> PROCEDURAL HURDLES -> BASIC-STRUCTURE CEILING -> CONSTITUTIONAL SUPREMACY.

MUST-KNOW FACTS

1. A verified 2025 GS-II Mains question (Q12, 15 marks, 250 words) directly tested procedural and substantive limitations on the amending power.
2. The recommended answer route covers the three amendment routes, procedural hurdles, and the basic-structure ceiling in sequence.

UPSC TRAPS

WRONG: Procedural limits and the basic-structure doctrine are the same kind of constraint.

CORRECT: Procedural limits govern how an amendment is passed; the basic-structure doctrine is a substantive ceiling on what can be amended at all.

MAINS ANGLE

Model thesis: India confers extensive constituent power on Parliament through a deliberately calibrated procedure, but both procedural hurdles and the judicially evolved basic-structure doctrine ensure this power operates within, and never above, constitutional supremacy.

STUDY LINK

Essay -> Constitutional Supremacy vs Parliamentary Sovereignty | GS-II -> Judiciary and Judicial Review